

EMPLOYEE SEPERATION AGREEMENT EXAMPLE

THIS IS AN EXAMPLE OF AN EMPLOYEE SEPERATION AGREEMENT, READY SET GROW, LLC. IS NOT LIABLE FOR THE VALIDITY OF THIS DOCUMENT FOR YOUR STATE, COUNTY, OR CITY. PLEASE CONSULT A LAWYER & YOUR STATE LAWS TO FORM YOUR OWN SEPERATION AGREEMENT SUITABLE FOR YOUR CHURCH.

- **READY SET GROW TEAM**

{CHURCH NAME}

EMPLOYMENT SEPARATION AGREEMENT

Date: _____

Via Hand Delivery

Dear _____:

Thank you for your services to {CHURCH NAME}. This letter, upon your signature, will constitute the agreement between you, _____ (“You”) and {CHURCH NAME} (the “Church”) regarding the terms of your separation from employment with the Church.

1. You will be deemed to have separated from the Church effective at the close of business on _____, 20__.
2. You have been paid your earned salary and accrued vacation pay through the effective date of your separation. If you believe the amount of your final paycheck is incorrect, you agree to contact the Church immediately.
3. You have received or will receive, by separate cover, information regarding your rights to health insurance continuation. To the extent that you have such rights, nothing in this agreement will impair, alter, add to, or take from those rights.
4. You agree to immediately return to the Church all property belonging to the Church.
5. You waive and release and promise never to assert any and all claims that you have or might have against the Church and any related entities, directors, officers, ministry leadership team members, agents, attorneys, employees, successors, or assigns, arising from or related to your employment with the Church and/or the resignation of your employment with the Church. These claims include, but are not limited to, personal injury claims, contract claims, employment claims, claims arising under federal, state and local statutory or common law, such as Title VII of the Civil Rights Act of 1964, the Americans With Disabilities Act, and the law of contract and tort. Furthermore, you acknowledge that you have been afforded all rights due to you, if any, under the Family and Medical Leave Act.

You also waive and release and promise never to assert any such claims, even if you do not believe that you have such claims.

6. Unless otherwise required by law, you agree that you will not disclose to others any information regarding the following:
 - a. Any information gained by you while employed by the Church, including, but not limited to, information concerning members, its employment practices, financial status or condition, pastoral confidences, trade practices, trade secrets, trade names, or trademarks;

b. The terms of this Separation Agreement, including, but not limited to, the benefit being paid under it or the fact of its payment. These matters are confidential except that you may disclose this information to your spouse or to your attorney. You will instruct them, however, to maintain the confidentiality of this information just as you must.

7. It is intended by the Parties that their separation will be, and remain, amicable in all regards. The Parties mutually agree not to disparage or speak negatively of each other.

8. You are entitled to one week of severance pay for each completed year of service at the Church which will be a total of ____ week's salary for your time served less customary payroll deductions, to be paid in accordance with the normal and customary payroll practices and schedule of the Church. By your signature below, you acknowledge receipt and sufficiency of same.

9. Although you are not otherwise entitled to it, in consideration of your execution of this Separation Agreement, the Church will provide you with an extra \$____ (____), constituting ____ (____) weeks salary and housing less customary payroll deductions, to be paid in accordance with the normal and customary payroll practices and schedule of the Church. By your signature below, you acknowledge receipt and sufficiency of same.

10. You will receive ____ hours of accrued but not taken Paid Time Off, less federal, state, and other applicable deductions. PTO will be on the final check/direct deposit

11. Your current health and dental insurance benefits shall continue through ____, thereafter you will have the option to acquire benefits through COBRA.

12. The Church may respond to inquiries from third parties about your employment with the Church by identifying your date of hire, date of termination, and position held at the time of separation. By initialing the space below this paragraph, you specifically authorize the Church to release and make full disclosure to your prospective employers all information related to your employment with the Church.

(initials)

13. In the event that you breach any of your obligations under this Separation Agreement or as otherwise imposed by law, the Church shall be entitled to stop payment of any benefit due under this agreement and shall be entitled to recover any benefit paid under this Agreement and to obtain all other relief provided by law or equity, including, but not limited to, injunctive relief. If subsequent to your departure or termination from employment, we determine that you have breached your duty of loyalty to the Church or any other duty imposed by law, during your employment at the Church, then in such case we reserve the right to immediately terminate this agreement, cease payments of any amounts contemplated by this agreement and to demand reimbursement for any loss or damages suffered by breach of such duty as well as return of any payments made under this agreement and we reserve our right to seek any damages or losses we may have as a result of such breach of duty in a court of competent jurisdiction.

14. You covenant and expressly agree that this settlement is made of your own free will and is not made in reliance upon any statement by any representative of the Church. You are advised hereby to consult with an attorney regarding this Agreement. You further state and covenant that you have read this Agreement; that you have been advised of your legal rights and discussed the same with your attorney or have had the opportunity to do so; that the terms are understood; that you have had ample and reasonable time to read, understand, discuss, and consider the aforesaid agreement; and that you enter into this agreement knowingly and voluntarily of your own free will.

15. Any and all claims or disputes arising from or related to this Agreement, other than a claim for injunctive relief, shall first be submitted to mediation in Ellis County, Texas in accordance with the then governing rules of The Institute for Christian Conciliation. If the parties cannot resolve their dispute through mediation, they shall have the issue resolved through arbitration with the then governing rules of The Institute for Christian Conciliation. In the event that the Institute for Christian Conciliation ceases to exist during the course of this Agreement, arbitration under this section shall be conducted according to the rules of the American Arbitration Association. Judgment upon an arbitration award may be entered in the District Court for the County of Ellis, Texas. Church and Employee shall bear their own costs related to any mediation or arbitration proceeding.

Nothing contained herein shall prevent the Church from filing any action in a court of competent jurisdiction for the limited purposes of outlining and supervising the enforcement of the mandatory arbitration process and of issuing any injunctive or similar preliminary relief as may be deemed appropriate by such court in advance of the issuance of any arbitration award.

16. This Separation Agreement shall be construed and enforced in accordance with Texas law. Venue shall reside in Ellis County, Texas.

17. If any portion, provision or part of this Separation Agreement is held, determined or adjudicated to be invalid, unenforceable or void for any reason whatsoever, each such portion, provision or part shall be severed from the remaining portions, provisions or parts of this Separation Agreement and shall not affect the validity or enforceability of such remaining portions, provisions or parts.

18. This Separation Agreement constitutes a single integrated contract expressing the entire agreement of the parties hereto. There are no agreements, written or oral, express or implied, between the parties hereto, concerning the subject matter hereof, except the agreements set forth in this Separation Agreement.

19. The prevailing party in any enforcement action under this Separation Agreement shall be entitled to full reimbursement of attorney's fees and costs.

_____, we are pleased that we were able to part ways on these amicable terms. We wish you every success in your future endeavors.

Sincerely,

{CHURCH NAME}

Signature: _____

Print: _____

Title: _____

By signing this letter, I acknowledge that I have been given the opportunity to review this Separation Agreement carefully; that I have read this Agreement and understand the terms of the Agreement; and that I voluntarily agree to them.

Signature: _____

Social Security Number: _____

Date: _____

THE STATE OF TEXAS

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COUNTY OF ELLIS

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BEFORE ME, the undersigned authority, on this day personally appeared _____, known to me to be the person whose name is subscribed to the foregoing instrument, and acknowledged to me that he executed the same for the purposes and consideration therein expressed.

GIVEN UNDER MY HAND AND SEAL OF OFFICE this, the ____ day of _____, 20__.

Notary Public, State of Texas